

BOARDS, COMMITTEES AND COMMISSIONS

9 Attachment 9

City of Waterville

Appendix 11

Committee Charge: Ethics Committee

[Adopted 12-28-2023 by Ord. No. 199-2023]

Establishment and Regulation.

City of Waterville City Charter, Article VI, Code of Ethics

City of Waterville Ethics Ordinance (Chapter 18)

1 M.R.S., Chapter 13, Freedom of Access

Purpose.

The Committee is charged with the development of an ordinance to define the code of ethical conduct of elected and appointed City officials, as well as all employees of the City. The Committee shall review the code every three years and make recommendations for changes to the City Council in writing; and shall meet at least once annually to elect a Chair. The Committee shall be convened when there are inquiries for an advisory opinion by the City Council or City Manager, with a quorum of at least five members.

Membership.

Membership shall be comprised of seven residents of the City, appointed by the Mayor and approved by the City Council, the term of which shall be three years. Members shall have no limit on the consecutive number of terms they may serve.

Scope of Authority.

The Committee is advisory in nature and its role is to formally review the Ethics Ordinance every three years and make recommendations, in writing, to the City Council for revisions to the ordinance. The Committee may be convened with at least five members upon request by the City Council or City Manager to give an advisory opinion regarding possible violations of the ordinance by elected or appointed officials.

The Committee is not authorized to make promises or enter into verbal or written agreements purporting to represent the City.

Conduct of Business.

The Committee is an official body of the City. As such it is subject to Maine's Freedom of Access Act, 1 M.R.S. § 403, and must meet in a location accessible to the public, allow the public to attend its meetings, publicly post the dates and times of its meetings, and keep minutes for the public record.

No member of the Committee may participate in a matter before the Committee where that member has a conflict of interest. If a question arises as to whether a member has a conflict of interest, after disclosure, the remaining members shall make that determination. The Committee may review the Ethics Ordinance or consult with the Solicitor on conflict of interest questions.

WATERVILLE CODE

Reporting.

The Committee is required to report to the City Council in writing, every three years, any recommendations for changes to the Ethics Ordinance.